

stating, he erroneously assumes that immunity intervenes in all circumstances to protect the defendant from having to stand trial AT ALL. Absolute immunity DOES NOT protect him from standing trial where "...plaintiff's allegations state a claim of violation of clearly established law..." Mitchell v. Forsyth, 86 L.Ed. 411, 425 (1985). Judge Nordberg rather derisively quotes from the complaint in footnote 4 of his ruling, and characterizes the complaint as a "cornucopia brimming with alleged violations of the federal Constitution, laws and Declaration of Independence, state statutes and common law, and even the natural law." But then by rather inverse and contorted logic (allegations of more egregious violations to be given more minimal credence); in violation of the requirement that such allegations are deemed true when considering such motions; and in complete affront to the plain language of Mitchell (86 L.Ed.2d at 425), the Fourteenth Amendment and Section 1983, he totally ignores that the complaint DID plainly allege that Defendant Mahoney and other defendants had acted in "violation of clearly established law", and without jurisdiction. What the District Court has done is to extend the concept of judicial immunity to immunity from suit under all circumstances.

Judicial immunity is an affirmative defense. Granted, as in situations involving sovereign immunity, judicial immunity may be effectively lost if the case is erroneously allowed to go to trial. However, the matter cannot be so simply resolved as to describe the office as "judicial" and thereby remove ALL possibility of responsibility.